

Murder in the Cathedral

Dr Devanesan Nesiah

We claim to be a deeply religious people, with 4 great world religions co-existing. It is true that Viharas, Temples, Mosques and Churches are often sited close to each other and worship goes on without friction. Unlike in many other countries in South and South East Asia and elsewhere, inter-religious riots are infrequent, of modest scale and localised, and quickly brought under control. In a crisis such as an ethnic riot or a sudden displacement in the wake of a natural disaster, those affected instinctively gravitate to places of worship, whether of their own religion or that of another, expecting and receiving protection and relief assistance. In this context, some recent developments are deeply disturbing.

The killing of the popular MP for Batticaloa, Joseph Pararajasingham, within St. Mary's Cathedral, even as the Bishop of Batticaloa was celebrat-

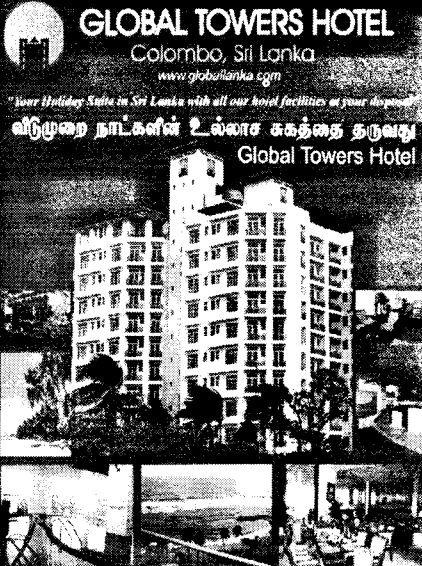
ing Christmas Mass, was particularly depraved. The motive may have been political, but the timing and venue reveal a level of callousness that would have been unthinkable till recent years. The killing of worshippers in the Grand Mosque at Akkaraipattu on 18th November 2005 is equally deplorable. Again, the motive may have been political, but the timing and venue indicate a similar level of callousness. So too, earlier acts of violence involving the desecration of Buddhist, Hindu, Muslim and Christian holy places in recent years.

It is not sought to attribute religious motives to such acts of terrorism. Indeed these must be seen in the context of the ongoing political violence of which they appear to be particularly obnoxious manifestations, and the ultimate remedy lies in addressing the political roots of the

problem. But finding political solutions may take a long time- years if not decades. In the meantime atrocities such as those referred to above, and the ongoing train of other political violence that appear to involve, at the very least, the state and the LTTE, may trigger a further escalation of the conflict that could inexorably lead to resumption of the civil war. We need a strong and effective institutional mechanism to promptly investigate each act of political terrorism (state, LTTE and other) and, wherever possible, attribute responsibility or even likely responsibility on the strength of the available evidence.

The functioning of the proposed institution will be unavoidably controversial. It is therefore essential that the structure and composition, and also powers and mandate, be such as to enable it to act quickly and effectively and, most important, with national and international credibility. Weakness in monitoring is a defect in the ceasefire agreement

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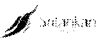
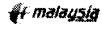
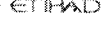
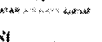
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So, what is it in a venue? Everything and nothing

Sathya

The peace process, according to Norway and some Colombo-based peace advocates, has stalled over a seemingly trivial tussle between the Government (GoSL) and the Liberation Tigers of Tamil Eelam (LTTE), over the venue for the recommencement of direct talk.

Yet another tussle as to whether the talks should concentrate on a "review" of the Ceasefire Agreement (CFA), as earlier posited by the GoSL, or on its "implementation", as maintained by the LTTE and Norway, has been resolved through some creative semantic juxtaposition that the talks should focus on the "review of the implementation of the ceasefire agreement". This phrasing by the Donor Co-Chairs in their statement of December 19, interestingly was also reflected in the Joint Statement that followed Foreign Minister Mangala Samaraweera's visit to India in early December where it said that "Minister Samaraweera emphasized the continued commitment of the government to the maintenance of the Ceasefire and the desire for a review of its operations, so that implementation of the agreement can be made more effective". This is indeed a welcome compromise to the futile review/revi-

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which needs to be remedied quickly.

The proposed institution, powers and mandate need the approval of the state, LTTE and other stakeholders. Pending such arrangements, which may unavoidably take some time, a Commission acceptable to the State, the LTTE and the Muslim Peace Secretariat could be immediately appointed to investigate and report within a very limited time frame on the Christmas day murder at St. Mary's Cathedral, the killings of 18 November at Akkaraipattu Grand Mosque, and the recent killing and alleged rape of the woman whose body was found in a well at Pungudhivu. If State, LTTE and Muslim Peace Secretariat approvals are not forthcoming, civil society could launch such an investigation. Time is of the essence. □

sion vs implementation debate that led nowhere.

It is therefore not difficult to envisage a situation where the issue over the venue would also be eventually resolved through a creative juxtaposition of the possible venue and an appropriate sequencing of the venues. This column seeks to reflect on this problematic.

But, before Sathya embarks on such a venture, the question needs to be posed whether the conflict over the venue is indeed trivial and unnecessary as Norway seems to imply in numerous statements, supported by our own peace advocates. It is Sathya's contention that as far as the parties (i.e. GoSL and LTTE) are concerned the issue of the venue is far from trivial and is a manifestation of the perennial contest between concerns over sovereignty by the State and the pursuit of legitimacy by the LTTE and will not simply fade away.

In the present context, it is clear that LTTE's insistence that the venue should be in Norway is aimed at rolling back the travel ban imposed on its delegations by the European Union (EU) and to neutralize any moves for the imposition of a total ban. And, by the same token, the insistence by the GoSL that the venue should not be in the European theatre is aimed precisely at checking the LTTE's strategy.

Further, by repeatedly stating that the venue for talks is not important, Norway appears to have conveniently forgotten the offer of Japan as a venue for talks by Japan's Special Envoy to Sri Lanka's Peace Process, Yashushi Akashi, who told a media briefing in Colombo on December 11 that the Japanese Government was willing to host the talks since, "the overnment told us that they are willing to be more flexible and agreed to hve negotiations outside the country, but in an Asian venue."

He further said, "I decided to comply with the wishes of the Government which is engaged in the strategy for peace including its relationship with the LTTE". Norway has also ignored the December 19 Statement of the Donor Co-Chairs which was

co-signed by Erik Solheim that "the Co-Chairs welcome the agreement of the Sri Lankan government and the LTTE to hold immediate talks to review the implementation of the ceasefire agreement, and also welcome Japan's offer to host talks. They strongly urge both sides to start such talks without further delay or prevarication".

So, how come Norway has been repeatedly calling on the parties to put aside the issue of the venue and get down to talking? Is it because both Norway and the LTTE want the venue to be in Norway? Despite the pontification by Erik Solheim that the venue is not important, the issue remains as to where the parties are going to sit down and talk.

Certainly not on his lap! While the appearance of things are misleading, it does "appear" to Sathya that Norway is as adamant as the LTTE that the talks should take place in Oslo with the international community going along with this scheme of things. It also "appears" to Sathya that Norway and the international community, at the insistence of Norway, by turning a blind eye to the ongoing "undeclared war" by the LTTE by placing equal blame and responsibility on the GoSL and the LTTE, perhaps may be encouraging the LTTE to turn the screws even more through their deadly claymore mines, so that the Mahinda Rajapakse Government is brought down on its knees and the faces of their "sons of the soil" allies rubbed on the soil for having the audacity to relegating Europe to the background in its preference for Asia and for demonizing Norway in the election campaign.

But, leaving aside the appearance of things, how does one resolve the issue of the venue, which, to reiterate, is by no means trivial to the parties concerned?

Firstly, in resolving the issue it must be done in a manner that the party engaged in escalating violence and waging an undeclared war is not rewarded. In this context, it would be extremely difficult for any self-respecting government could agree to Norway as the venue under duress and at this particular juncture.

Further, it must be recognized that the Government did in fact make concessions by dropping its demand for the revision of the CFA and to go along with LTTE's position of talks relating to the implementation of the CFA, and in a third country. The ar-